

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index #
Date Purchased:
SUMMONS

-----X
LEONARD GREEN,

Plaintiff,

-against-

Plaintiff designates
Kings County as the place
of trial

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER RONALD CLARKE,
POLICE OFFICER CAMERON EVELYN,

The basis of venue is:
PLAINTIFF'S
RESIDENCE

Defendants.

-----X

To the above named Defendant:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: BROOKLYN, NEW YORK
September 20, 2016

Plaintiff's attorneys:
BARON ASSOCIATES, P. C.
2509 Avenue U
Brooklyn, New York 11229
(718) 934-6501
Our File No. 8916

NOTICE: THE NATURE OF THIS ACTION IS AS FOLLOWS: NEGLIGENCE on or about July 16, 2015.

THE RELIEF SOUGHT IS AS FOLLOWS: MONEY DAMAGES.

UPON YOUR FAILURE TO APPEAR: Judgment will be taken against you by default with interest from July 16, 2015, and the costs of this action.

THE CITY OF NEW YORK
100 Church Street
New York, NY

Defendants' addresses:
NEW YORK CITY POLICE DEPARTMENT
100 Church Street
New York, NY

POLICE OFFICER RONALD CLARKE
154 Lawrence Avenue
Brooklyn, NY 11230

POLICE OFFICER CAMERON EVELYN
154 Lawrence Avenue
Brooklyn, NY 11230

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
LEONARD GREEN,

Plaintiff,

-against-

COMPLAINT

Index No.:

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER RONALD CLARKE,
POLICE OFFICER CAMERON EVELYN,

Defendants.
-----X

LEONARD GREEN (“plaintiff”), complaining of the defendants, by his attorneys, Baron
Associates P.C., upon information and belief, respectfully alleges:

1. That at all times the Plaintiff LEONARD GREEN was and is a resident of Kings
County, State of New York.
2. That at all times hereinafter mentioned, the defendant, CITY OF NEW YORK,
hereinafter referred to as “CITY”, was and still is a municipal corporation organized and existing
and by virtue of the laws of the State of New York.
3. That at all times hereinafter mentioned the defendant, NEW YORK CITY
POLICE DEPARTMENT, hereinafter referred to as “NYPD”, was and is an agency of the
defendant, CITY.
4. That on and prior to July 16, 2015 and at all times hereinafter mentioned the
defendant, POLICE OFFICER RONALD CLARKE, hereinafter referred to as “CLARKE” was
and is a police officer employed by the defendant NYPD, and at all times herein was acting in
such capacity as the agent, servant and employee of the CITY and NYPD.
5. That on and prior to July 16, 2015 and at all times hereinafter mentioned the
defendant, POLICE OFFICER CAMERON EVELYN, hereinafter referred to as “EVELYN”

was and is a police officer employed by the defendant NYPD, and at all times herein was acting in such capacity as the agent, servant and employee of the CITY and NYPD.

6. Upon information and belief, at all times hereinafter mentioned, and on July 16, 2015, at approximately 11:45 a.m., police officers CLARKE AND EVELYN were on duty and in the vicinity of 2525 Kings Highway, Brooklyn, NY, also known as New York Community Hospital.

7. Upon information and belief, at all times hereinafter mentioned, and on July 16, 2015, at approximately 11:45 a.m., the above mentioned Police Officers were acting within the scope of their employment and under the direction of the CITY and NYPD as its agents, servants and/or employees.

8. That on and prior to July 16, 2015 CLARKE AND EVELYN were each individually hired, screened, tested, interviewed, trained, retrained, investigated, monitored and supervised by the CITY and NYPD.

9. That on and prior to July 16, 2015, at approximately 11:45 a.m., and all relevant times herein after, CLARKE AND EVELYN individually and/or collectively were acting pursuant to and under the rules and regulations of the New York City Patrol Guidelines.

10. That on July 16, 2015, at approximately, 11:45 a.m., Plaintiff LEONARD GREEN was lawfully on the premises of 2525 Kings Highway, Brooklyn, NY, also known as New York Community Hospital and doing nothing illegal, improper or acting suspicious in anyway. In fact, Plaintiff LEONARD GREEN was visiting his ill mother in room 209.

11. That on July 16, 2015, at approximately, 11:45 a.m., at the premises known as 2525 Kings Highway, Brooklyn, NY, room 209, CLARKE AND EVELYN, absent an arrest warrant, probable cause, reasonable cause or any legal justification, approached

Plaintiff LEONARD GREEN for no reason and summarily grabbed, assaulted, battered, and detained him in an aggressive and excessive manner, forcing him out of the premises known as 2525 Kings Highway, Brooklyn, NY also known as New York Community Hospital.

12. Upon information and belief CLARKE AND EVELYN knew or had reason to know that their actions lacked any legal justification in approaching, assaulting, battering and detaining Plaintiff LEONARD GREEN.

13. Upon information and belief, Plaintiff LEONARD GREEN was subjected to assault, battery, and humiliation while in the custody of defendants without any legal reason or justification.

14. That Plaintiff LEONARD GREEN was not arrested nor charged with any crime after he was unlawfully detained, assaulted, battered and humiliated and then subsequently threatened and removed from 2525 Kings Highway, Brooklyn, NY also known as New York Community Hospital.

15. Plaintiff LEONARD GREEN sustained physical and emotional pain and injuries as a result of this incident.

16. That Plaintiff, LEONARD GREEN, filed a complaint with the Civilian Complaint Review Board, however no meaningful investigation was forth coming.

17. That upon information and belief, at all times pertinent, the Defendants were acting concurrently and in concert. There existed among them a joint enterprise and mutual agency. The knowledge of one was the knowledge of all. The act of one was the act of all.

18. That within ninety (90) days after the causes of actions accrued herein, and more than thirty (30) days prior to the commencement of this action, the Plaintiff LEONARD GREEN pro se filed the notice of claim pre-se, in writing, sworn to by and on behalf of himself,

containing the statement of the name and place of residence of the claimant, and describing the time when the particular claim and circumstances under which the damages and injuries were sustained, the cause thereof, and so far as practical, the nature and extent of the injuries to be personally served upon the defendant CITY, their agents, servants and/or employees. Annexed hereto as Exhibit "A" is a true copy of the Notice of Claim.

19. This action was so commenced within one (1) year and ninety (90) days after said cause of action accrued herein, and for more than thirty (30) days prior to the commencement of this action, defendant CITY neglected, refused and failed to make an adjustment of said claim, and said claim remains unadjusted and unpaid, although plaintiff herein has requested and demanded that the same be paid and adjusted.

20. That the defendants requested an oral examination pursuant to General Municipal Law Section 50-H and said request was complied with.

21. That on January 11, 2016, pursuant to General Municipal Law 50(h), Plaintiff appeared pro-se for a hearing was held at the Offices of Krez & Flores, LLP, 225 Broadway, Suite 705, New York, New York.

MONELL CLAIM

22. At all times material to this complaint, the defendant CITY, acting through NYPD, had in effect de facto policies, practices, and customs that were a direct and proximate cause of the unconstitutional conduct of defendants CLARKE AND EVELYN.

23. These de facto policies, practices and customs include, inter alia: the failure to properly screen, supervise, discipline, transfer, counsel, and/or otherwise control police officers engaged in the excessive and unjustified use of force, particularly those police officers who are repeatedly accused of such acts; and, the police code of silence wherein police officers regularly

cover-up police use of excessive and unjustified force by telling false and incomplete stories, or by failing to report the use of excessive and unjustified force by police officers.

24. The policy, practice and custom of failing to screen, discipline, supervise, counsel, transfer, and/or control police officers, is evidenced, inter alia, by the following: the increase in the number of allegations of excessive force complaints filed with the Civilian Complaint Review Board [hereinafter “CCRB”]; that in 1996, only 52 officers out of a force of 38,000 -- the largest police department in the country -- were punished because of action taken by the CCRB; that from July, 1993, to July, 1997, only one officer has been dismissed for brutality or other forms of misconduct which were investigated by the CCRB; that since at least 1984 defendant NYC has been on notice that their training of police officers has been inadequate and that police officers joining the force, including defendants Doe and Roe, were disproportionately involved in misconduct and abuse, particularly involving excessive force and brutality (*see, e.g.,* Mayor’s Advisory Committee on Police Management and Personnel Policy, Final Report, February 24, 1987); that in 1990 the Office of Special Prosecutor, which investigated charges of police corruption, was abolished; that The Commission Report of the Commission to Investigate Allegations of Police Corruption and the Anti-Corruption Procedures of the Police Department (“Mollen Commission Report”), dated July 7, 1994, states “As important as the possible extent of brutality, is the extent of brutality tolerance we found throughout the Department. While the tolerance for brutality arises from the same set of police attitudes as the tolerance for corruption, there is an important difference. Unlike serious corruption, which most cops outwardly tolerate but inwardly deplore and resent, officers seem fairly tolerant -- both outwardly and inwardly -- of occasional police brutality.... [M]any do not seem to believe that anything is really wrong with a few blows and bruises now and then. Even

officers who would never take a free cup of coffee, seem to tolerate what they believe is a little 'street justice.' An excessive use of fists to face, nightsticks to ribs, and knees to groin are seen as the realities of policing."

25. On information and belief, the defendant CITY, and NYPD have failed to effectively screen, hire, train, supervise and discipline their police officers, including the defendant police officers herein, for their propensity for violence, including excessive and unjustified force and restraint, lack of truthfulness, and for their failure to protect citizens from unconstitutional conduct of other police officers, thereby permitting and allowing the defendant police officer herein to be in a position to assault, beat and/or excessively and unjustifiably restrain the Plaintiff, LEONARD GREEN and to otherwise cause him injury and violate his constitutional rights.

26. On information and belief, defendants CLARKE AND EVELYN have been the subject of prior civilian and departmental complaints of misconduct that gave notice to, or should have given notice to, the defendants that defendants CLARKE AND EVELYN were likely to engage in conduct that would violate the civil and constitutional rights of the public, such as the conduct complained of by Plaintiff herein.

27. On information and belief, the defendant CITY, and NYPD, maintained an inadequate structure for risk containment and stress management relative to its police officers, and failed to create proper means of containing such risk and managing such stress. Inter alia, the structure was deficient, at the time of selection of police officers and thereafter during their employment, in its ability to evaluate and exchange information within the command structure about the performance of individual police officers; in its training of supervisory personnel to effectively and adequately evaluate performance of an officer; and in its ability to otherwise put

the command structure on notice that an individual or individuals were at significant levels of risk to the public at large or to specific segments thereof. The effect of this was to permit police officers to function at levels of significant and substantial risk to the public.

28. As a result of the foregoing conscious policies, practices, customs and/or usages, defendant CITY, and NYPD, have permitted and allowed the employment and retention of individuals as police officers whose individual circumstances place the public or segments thereof at substantial risk of being the victims of violent behavior. Such policies, practices, customs and/or usages are a direct and proximate cause of the conduct alleged herein and are otherwise a direct and proximate cause of the injuries to Plaintiff herein.

29. As a direct and proximate result of the defendant's wrongful policies, practices, customs and/or usages complained of herein, Plaintiff has suffered severe physical, mental and emotional injury and pain, mental anguish, suffering, humiliation and embarrassment, both personally and professionally.

30. Defendant NYC is additionally liable under the legal principle of *Respondeat Superior*, in that defendants CLARKE AND EVELYN were on duty and was acting in the course and scope of her duties and employment as a New York City Police Officers during the detention, and assault upon Plaintiff.

**FIRST CAUSE OF ACTION ON BEHALF OF LEONARD GREEN FOR VIOLATIONS
OF CONSTITUTIONAL RIGHTS AND VIOLATIONS OF 42 U.S.C. SECTION 1983**

31. Plaintiff incorporates by reference the allegations set forth in paragraphs "1" through "30" of the Complaint as if fully set forth herein.

32. The conduct of the individually-named defendants, acting under color of law and in concert with one another, in making an illegal and unauthorized detention, assault and battery,

harassment, use of excessive and unreasonable force, unlawful and unreasonable detention of the plaintiff, was done intentionally, maliciously, wantonly, and/or with a reckless disregard for the natural and probable consequences of their acts, and was done without lawful justification, and were designed to and did cause specific and serious bodily harm, pain and suffering in violation of plaintiff 's Constitutional rights as guaranteed under 42 U.S.C. Section 1983, and by the Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States of America.

33. By reason of the foregoing, plaintiff has been damaged, as is entitled to an award of monetary damages in excess of the jurisdictional limit of all lower Courts, the specific sum of which to be decided by the trier of fact and law, in addition to an award of costs, disbursements, interest and legal fees.

34. By virtue of the foregoing intentional, malicious and wanton conduct, plaintiff is also entitled to punitive damages, the specific sum of which to be decided by the trier of fact and law.

**CAUSE OF ACTION ON BEHALF OF LEONARD GREEN FOR VIOLATIONS OF
CONSTITUTIONAL RIGHTS AND 42 U.S.C. SECTIONS 1983 FOR THE FAILURE OF
DEFENDANTS CITY AND/OR NYPD TO HIRE, TRAIN, AND SUPERVISE
INDIVIDUALLY-NAMED DEFENDANTS**

35. Plaintiff incorporates by reference the allegations set forth in paragraphs "1" through "34" of the Complaint as if fully set forth herein.

36. NYC, and/or NYPD, its agents, servants and employees, acting under color of law, in a regular, pervasive, intentional, reckless and/or grossly negligent pattern, plan and manner, and with deliberate indifference towards plaintiff and/or other similarly-situated citizens/residents, failed to reasonably and properly hire, supervise, train and discipline police officers under their jurisdiction, including the individually-named defendants

herein, with respect to unlawful and brutal assaults, and detention and to otherwise deprive residents/citizens of their federal constitutional and statutory rights, privileges and immunities, and rights under state law.

37. Such inadequate training and inadequate supervision were the direct causes of and the moving forces behind the aforesaid events, as guaranteed under 42 U.S.C. Sections 1983 and by the Fourth, Fifth, Eighth, Thirteenth and Fourteenth Amendments to the Constitution of the United States of America.

38. By reason of the foregoing, plaintiff has been damaged, as is entitled to an award of monetary damages in excess of the jurisdictional limit of all lower Courts, the specific sum of which to be decided by the trier of fact and law, in addition to an award of costs, disbursements, interest and legal fees.

39. By virtue of the foregoing intentional, malicious and wanton conduct, plaintiff is also entitled to punitive damages, the specific sum of which to be decided by the trier of fact and law.

**THIRD CAUSE OF ACTION ON BEHALF OF LEONARD GREEN FOR VIOLATIONS
OF CONSTITUTIONAL RIGHTS AND VIOLATIONS OF 42 U.S.C. SECTIONS
1983 BY CITY AND/OR NYPD FOR ITS FAILURE TO PREVENT MISCONDUCT AND
TO DISCIPLINE OFFENDING OFFICERS**

40. Plaintiff incorporates by reference the allegations set forth in Paragraphs “1” through “39” of the Complaint as if fully set forth herein.

41. NYC, and/or NYPD, its agents, servants and employees, acting under color of law, in a careless, reckless and negligent manner and with deliberate indifference towards plaintiff and other citizens/residents, had actual or imputed knowledge through their supervisory officials of a past pattern of such police misconduct and brutality inflicted on various

citizens/residents, and failed to exercise reasonable care in investigating such claims in order to prevent such misconduct.

42. CITY, and/or NYPD, its agents, servants and employees, acting under color of law, in a grossly negligent manner and with deliberate indifference towards plaintiff and/or other similarly-situated citizens/residents, had actual or imputed knowledge, through their supervisory officials, of a past pattern of police misconduct and brutality inflicted on plaintiff by the individually-named defendants, and/or the police officers of its 70th Police Precinct, and failed to prevent the misconduct and brutality inflicted on plaintiff.

43. By failing to act to prevent such misconduct and/or to discipline offending officers, CITY and/or NYPD approved and encouraged such conduct towards the plaintiff and others similarly situated, and thus promulgated and/or carried out an official policy or custom permitting such behavior in violation of plaintiff's rights as guaranteed under 42 U.S.C. Sections 1983 and by the Fourth, Fifth, Eighth, Thirteenth and Fourteenth Amendments to the Constitution of the United States of America.

44. By reason of the foregoing, plaintiff has been damaged, as is entitled to an award of monetary damages in excess of the jurisdictional limit of all lower Courts, the specific sum of which to be decided by the trier of fact and law, in addition to an award of costs, disbursements, interest and legal fees.

45. By virtue of the foregoing intentional, malicious and wanton conduct, plaintiff is also entitled to punitive damages, the specific sum of which to be decided by the trier of fact and law.

**FOURTH CAUSE OF ACTION ON BEHALF OF LEONARD GREEN FOR
NEGLIGENT USE OF FORCE**

46. Plaintiff incorporates by reference the allegations set forth in Paragraphs “1” through “45” of the Complaint as if fully set forth herein.

47. The individually-named defendants were without reason, justification or authority in assaulting, committing battery upon, and detaining the Plaintiff, these individually-named defendants had a duty to exercise reasonable care and a duty to refrain from using illegal, unjustified, unreasonable and excessive force.

48. The aforesaid grossly negligent, wanton, and reckless conduct of the individually-named defendants constituted a negligent use of force as against the plaintiff, and accordingly, these individually-named defendants are liable to the plaintiff for any and all resulting injuries and damages.

49. CITY and/or NYPD are liable for the aforesaid acts of the individually-named defendants under the doctrine of respondeat superior.

50. By reason of the foregoing, plaintiff has been damaged, as is entitled to an award of monetary damages in excess of the jurisdictional limit of all lower Courts, the specific sum of which to be decided by the trier of fact and law, in addition to an award of costs, disbursements, interest and legal fees.

51. By virtue of the foregoing intentional, malicious and wanton conduct, plaintiff is also entitled to punitive damages, the specific sum of which to be decided by the trier of fact and law.

**FIFTH CAUSE OF ACTION ON BEHALF OF LEONARD GREEN FOR NEGLIGENT
HIRING, SUPERVISION, AND TRAINING OF POLICE OFFICERS**

52. Plaintiff incorporates by reference the allegations set forth in paragraphs “1” through “51” of the Complaint as if fully set forth herein.

53. At all times relevant herein, notwithstanding the illegality of the conduct described heretofore, the individually-named defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of CITY and/or NYPD, and/or otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties.

54. At all relevant times herein, the individually-named defendants were acting for and on behalf of and in furtherance of the business of CITY and/or NYPD, with the power and authority vested in them as officers, agents and employees of CITY's and/or NYPD's police department and incidental to the lawful pursuit of their duties as officers, employees and agents thereof.

55. At all relevant times herein, the individually-named defendants were acting pursuant to the customs and policies of City's police department.

56. At all relevant times herein, CITY and/or NYPD are obligated by law to maintain a police department, and are ultimately responsible and assume the risk incidental to the maintenance of a police force.

57. At all relevant times herein ,As part of their duties in maintaining a police force and in employing police officers, CITY and/or NYPD must exercise reasonable care in hiring, training, and supervising police officers, and in investigating claims of police brutality.

58. At all relevant times herein, CITY, and/or NYPD, its agents, servants and employees, in a grossly negligent manner and with deliberate indifference to the plaintiff and/or

citizens/residents of the aforesaid community, failed to exercise reasonable care in hiring, training, and supervising these individual-named defendants who committed the aforesaid tortious acts against the plaintiff, and who otherwise violated the plaintiffs constitutional and statutory rights, privileges, and immunities.

59. At all relevant times herein, CITY, and/or NYPD, its agents, servants and employees, acting under color of law, in a grossly negligent manner and with deliberate indifference towards the plaintiff and/or other citizens/residents, had actual or imputed knowledge through their supervisory officials of a past pattern of police misconduct and brutality inflicted on various citizens in general and on the plaintiff in particular, and failed to exercise reasonable care in investigating claims of police brutality in order to prevent such misconduct.

60. At all relevant times herein, Such inadequate hiring, inadequate training, inadequate supervision, and failure to investigate claims of police brutality were the direct causes of and the moving forces behind the aforesaid events, resulting in severe physical and emotional injuries to plaintiff, in violation of such plaintiffs statutory and constitutional rights and rights, privileges, and immunities under state and federal law.

61. By reason of the foregoing, plaintiff has been damaged, as is entitled to an award of monetary damages in excess of the jurisdictional limit of all lower Courts, the specific sum of which to be decided by the trier of fact and law, in addition to an award of costs, disbursements, interest and legal fees.

62. By virtue of the foregoing intentional, malicious and wanton conduct, plaintiff is also entitled to punitive damages, the specific sum of which to be decided by the trier of fact and law.

SIXTH CAUSE OF ACTION ON BEHALF OF LEONARD GREEN FOR ASSAULT

63. Plaintiff incorporates by reference the allegations set forth in paragraphs “1” through “62” of the Complaint as if fully set forth herein.

64. The individually-named defendants intentionally, wrongfully, illegally and without probable cause, or a legal basis or justification, placed the plaintiff in apprehension of imminent harmful and/or offensive contact.

65. The plaintiff reasonably believed that the individually-named defendants were capable and intended to imminently harm and/or offensively come in contact with him.

66. The aforesaid actions, conduct and behavior of the individually-named defendants constitute the tort of assault.

67. The aforesaid intentional, grossly wanton, and reckless conduct of the individually-named defendants constituted an illegal use of force as against the plaintiff, and accordingly, these individually-named defendants are liable to the plaintiff for any and all resulting injuries and damages.

68. At all relevant times herein, the individually-named defendants were acting for and on behalf of and in furtherance of the business of CITY and/or NYPD, with the power and authority vested in them as officers, agents and employees of CITY and/or NYPD's police department and incidental to the lawful pursuit of their duties as officers, employees and agents thereof.

69. At all relevant times herein, CITY and/or NYPD are liable for the aforesaid acts of the individually-named defendants under the doctrine of respondeat superior.

70. By reason of the foregoing, plaintiff has been damaged, as is entitled to an award of monetary damages in excess of the jurisdictional limit of all lower Courts, the specific sum of

which to be decided by the trier of fact and law, in addition to an award of costs, disbursements, interest and legal fees.

71. By virtue of the foregoing intentional, malicious and wanton conduct, plaintiff is also entitled to punitive damages, the specific sum of which to be decided by the trier of fact and law.

SEVENTH CAUSE OF ACTION ON BEHALF OF LEONARD GREEN FOR BATTERY

72. Plaintiff incorporates by reference the allegations set forth in paragraphs “1” through “71” of the Complaint as if fully set forth herein.

73. The individually-named defendants intentionally, wrongfully, illegally and without probable cause, or a legal basis or justification, made bodily contact with the plaintiff.

74. The aforesaid bodily contact was harmful and/or offensive in nature.

75. The aforesaid bodily contact was made with intent.

76. The aforesaid actions, conduct and behavior of the individually-named defendants constitute the tort of battery.

77. The aforesaid intentional, grossly wanton, and reckless conduct of the individually-named defendants constituted an illegal use of force as against the plaintiff, and accordingly, these individually-named defendants are liable to the plaintiff for any and all resulting injuries and damages.

78. . At all relevant times herein, the individually-named defendants were acting for and on behalf of and in furtherance of the business of CITY and/or NYPD, with the power and authority vested in them as officers, agents and employees of CITY's and/or NYPD's police department and incidental to the lawful pursuit of their duties as officers, employees and agents thereof.

79. CITY and/or NYPD are liable for the aforesaid acts of the individually-named defendants under the doctrine of respondeat superior.

80. By reason of the foregoing, plaintiff has been damaged, as is entitled to an award of monetary damages in excess of the jurisdictional limit of all lower Courts, the specific sum of which to be decided by the trier of fact and law, in addition to an award of costs, disbursements, interest and legal fees.

81. By virtue of the foregoing intentional, malicious and wanton conduct, plaintiff is also entitled to punitive damages, the specific sum of which to be decided by the trier of fact and law.

**EIGHTH CAUSE OF ACTION ON BEHALF OF LEONARD GREEN
FOR INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS**

82. Plaintiff incorporates by reference the allegations set forth in paragraphs “1” through “81” of the Complaint as if fully set forth herein.

83. The aforesaid actions, conduct and behavior of the defendants, in its assault, battery, detention and the violation of the civil rights, of the plaintiff, was extreme and outrageous, as measured by the reasonable bounds of decency as tolerated by society.

84. The aforesaid actions, conduct and behavior of the defendants, in its assault, battery, detention and the violation of the civil rights, of the plaintiff, was intentional, wanton and/or reckless, with the purpose to cause the plaintiff to incur emotional distress.

85. The aforesaid actions, conduct and behavior of the defendants, in its assault, battery, detention and the violation of the civil rights, of the plaintiff, resulted in extreme physical, mental and emotional injury and distress.

86. The aforesaid actions, conduct and behavior of the individually-named defendants constitute the tort of intentional infliction of emotional distress.

87. The aforesaid intentional, grossly wanton, and reckless conduct of the individually-named defendants constituted an illegal use of force as against the plaintiff, and accordingly, these individually-named defendants are liable to the plaintiff for any and all resulting injuries and damages.

88. At all relevant times herein, the individually-named defendants were acting for and on behalf of and in furtherance of the business of CITY and/or NYPD, with the power and authority vested in them as officers, agents and employees of CITY's and/or NYPD's police department and incidental to the lawful pursuit of their duties as officers, employees and agents thereof.

89. At all relevant times herein, NYC and/or NYPD are liable for the aforesaid acts of the individually-named defendants under the doctrine of respondeat superior.

90. By reason of the foregoing, plaintiff has been damaged, as is entitled to an award of monetary damages in excess of the jurisdictional limit of all lower Courts, the specific sum of which to be decided by the trier of fact and law, in addition to an award of costs, disbursements, interest and legal fees.

91. By virtue of the foregoing intentional, malicious and wanton conduct, plaintiff is also entitled to punitive damages, the specific sum of which to be decided by the trier of fact and law.

WHEREFORE, plaintiff demands judgment against each and every defendant in an amount which exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction and which warrants the jurisdiction of this Court; together with the costs and disbursements of this action.

Dated: Brooklyn, New York
September 20, 2016

Yours, etc.,
BARON ASSOCIATES P.C.

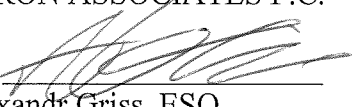
By: 
Alexander Griss, ESQ.
Attorneys for Plaintiff
LEONARD GREEN
2509 Avenue U
Brooklyn, NY 11229
Tel: (718)934-6501
Fax: (718)648-7781

EXHIBIT “A”



New York City Comptroller
Scott M. Stringer

Office of the New York City Comptroller
1 Centre Street
New York, NY 10007

Form Version: NYC-COMPT-BLA-PI1-M

Personal Injury Claim Form

Claim must be filed *in person or by registered or certified mail within 90 days of the occurrence* at the NYC Comptroller's Office, 1 Centre Street, Room 1225, New York, New York 10007. It must be *notarized*. If claim is not resolved within *1 year and 90 days of the occurrence*, you must start legal action to preserve your rights.
TYPE OR PRINT

I am filing: ☒ On behalf of myself.

☐ On behalf of someone else. If on someone else's behalf, please provide the following information.

☐ Attorney is filing.

Last Name: GREEN
First Name: LEONARD
Relationship to the claimant: SELF

Attorney Information (If claimant is represented by attorney)

Firm or Last Name:
Firm or First Name:
Address:
Address 2:
City:
State:
Zip Code:
Tax ID:
Phone #:
Email Address:

Claimant Information

*Last Name: GREEN
*First Name: LEONARD
Address: 1240 EAST 19th Street
Address 2:
City: Brooklyn
State: New York
Zip Code: 11230
Country: U.S.A.
Date of Birth: 02/2/55 Format: MM/DD/YYYY
Soc. Sec. #: 100-38-8020
HICN: 108876158
(Medicare #)
Date of Death: Format: MM/DD/YYYY
Phone: 347-668-3005
Email Address:
Occupation: Unemployed
City Employee? ☐ Yes ☒ No ☐ NA
Gender: ☒ Male ☐ Female ☐ Other

RECEIVED
CITY OF NEW YORK
CENTRAL RECORDS FACILITY
BRI. INFORMATION SYSTEM

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* Denotes required field(s).



New York City Comptroller
Scott M. Stringer

Office of the New York City Comptroller
1 Centre Street
New York, NY 10007

The time and place where the claim arose

*Date of Incident:

07 16 2015

Format: MM/DD/YYYY

Time of Incident:

11 30 AM

Format: HH:MM AM/PM

*Location of Incident:

New York Community
HOSPITAL

Address:

2525 Kings Highway

Address 2:

City:

Brooklyn

State:

New York 112 29

Borough:

*Manner in which claim arose:

Attach extra sheet(s) if more room is needed.

I appealed my mother's discharge with Levantira (I believe that triggered the hospital negative attitude towards me). This brings to mind a similar incident a short time earlier, where the hospital wanted to discharge my mom on another matter, and Dr. Bouhumb got in the face of the Social Worker and said that Mrs. Green will be discharged "when I say so". He indicated that Mrs. Green has a fecal impaction and you can not release a person in that condition. If you do so (this was Friday) there will be charges made on Monday.

The hospital unbeknownst to me called the Police Dept. to have me removed from the hospital. I met with Detectives Clarke, Evelyn and a rep from the hospital Mrs. Fitz Martin. I was told that the hospital rep can

The items of damage or injuries claimed are (include dollar amounts):

Attach extra sheet(s) if more room is needed.

Attack from behind resulted in a need to take X rays of the entire spine. Result I am now a patient at the Brooklyn Spine Center undergoing a program (recommended 2x/wk sessions) for 3 months, which will ^{then} be reevaluated by Dr. Melinda Keller to determine future action. Expense incurred out of pocket thru 9/16/15 is \$420

*Denotes required field(s).

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New York City Comptroller
Scott M. Stringer

Office of the New York City Comptroller
1 Centre Street
New York, NY 10007

Medical Information

1st Treatment Date:	<u>08-05-2015</u>	Format: MM/DD/YYYY
Hospital/Name:	<u>Brooklyn Spine Center</u>	
Address:	<u>5911 16th Avenue</u>	
Address 2:		
City:	<u>Brooklyn</u>	
State:	<u>New York</u>	
Zip Code:	<u>11204</u>	
Date Treated in Emergency Room:		Format: MM/DD/YYYY
Was claimant taken to hospital by an ambulance?	☐ Yes ☒ No ☐ N/A	

Employment Information (If claiming lost wages)

Employer's Name:	
Address	
Address 2:	
City:	
State:	
Zip Code:	
Work Days Lost:	
Amount Earned Weekly:	

Treating Physician Information

Last Name:	<u>Applebaum</u>
First Name:	<u>Dr. Marilyn</u>
Address:	<u>5911 16th Avenue</u>
Address 2:	
City:	<u>Brooklyn</u>
State:	<u>New York</u>
Zip Code:	<u>11204</u>



New York City Comptroller
Scott M. Stringer

Office of the New York City Comptroller
1 Centre Street
New York, NY 10007

Witness 1 Information

Last Name: _____
First Name: _____
Address: _____
Address 2: _____
City: _____
State: _____
Zip Code: _____

Witness 4 Information

Last Name: _____
First Name: _____
Address: _____
Address 2: _____
City: _____
State: _____
Zip Code: _____

Witness 2 Information

Last Name: _____
First Name: _____
Address: _____
Address 2: _____
City: _____
State: _____
Zip Code: _____

Witness 5 Information

Last Name: _____
First Name: _____
Address: _____
Address 2: _____
City: _____
State: _____
Zip Code: _____

Witness 3 Information

Last Name: _____
First Name: _____
Address: _____
Address 2: _____
City: _____
State: _____
Zip Code: _____

Witness 6 Information

Last Name: _____
First Name: _____
Address: _____
Address 2: _____
City: _____
State: _____
Zip Code: _____

I do not have a roster of the witnesses to the incident, however since the incident took place on 7/16/15 a list of the people who were working at that time in the corridor outside room 209 should be available (time is approximately 11:30 AM). In addition a tape which I was told by the Civilian Complaint Review Board has been subpoenaed and that will clearly show in black and white the two officers attacking me from behind (similar to incidents that have made national news recently).

* Denotes required field(s).

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New York City Comptroller
Scott M. Stringer

Office of the New York City Comptroller
1 Centre Street
New York, NY 10007

Complete if claim involves a NYC vehicle

Owner of vehicle claimant was traveling in

Last Name:

First Name:

Address

Address 2:

City:

State:

Zip Code:

Non-City vehicle driver

Last Name:

First Name:

Address

Address 2:

City:

State:

Zip Code:

Insurance Information

Insurance Company
Name:

Address

Address 2:

City:

State:

Zip Code:

Policy #:

Phone #:

Non-City vehicle information

Make, Model, Year
of Vehicle:

Plate #:

VIN #:

City vehicle information

Plate #:

City Driver Last
Name:

City Driver First
Name:

**Description of
claimant:**

- ☐ Driver ☐ Passenger
☐ Pedestrian ☐ Bicyclist
☐ Motorcyclist ☐ Other

***Total Amount
Claimed:**

Format: Do not include "\$" or ",".

Date

State of New York
County of

Signature of Claimant

Signature of
Claimant

I, Leonard Green, being duly sworn depose and say that I have read the foregoing
NOTICE OF CLAIM and know the contents thereof; that same is true to the best of my own knowledge, except as to the matter here stated
to be alleged upon information and belief, and as to those matters, I believe them to be true.

Sworn before me this day

GLUZMAN SUZANNA
Notary Public, State of New York
No. 01GL608438
Qualified in Kings County
Commission Expires December 02, 2018

* Denotes required field(s).

Continued!

explain her side of the situation (why there was a need to call police and then I could reply). Well Donna explained her side of the story, and when it came time for me to squish all these falsehoods Detective Evelyn said "I changed my mind" and that Leonard Green could not say anything. This would not be the only time Detective Evelyn "would change his mind."

I requested to go to my mother's room and tell her I have to leave (after all at time of incident she was 98 years old) and used to me being with her through dinner, pick^{up} my papers and cell phone. Initially the 2 officers objected till 2 doctors viewing the matter insisted that I should be allowed to go my mother's room about 60 feet away, say goodbye and retrieve my belongings. I did exactly so.

On the way from my mother's room (#209) to the elevator a distance of approximately 50 feet, I was physically attacked by Detective Clarke twice, from behind. Not being able to see the oncoming attack, his first attack to my back knocked me to the wall, while his second attack made me fall forwarded. I was walking to the elevator as instructed by the officers (as many onlookers: doctors, nurses, aides will attest) and why Detective Clarke attacked me

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is a secret known only to Detective Clarke. Upon arriving at the elevator the down button was pressed, and then Detective Evelyn matched his partner's actions by attacking me from the back. I guess when I was attacked initially by Detective Clarke and various hospital employees asked what are you doing, Detective Evelyn did not hear their call.

Again, plenty of hospital employees saw the attacks, and in addition the "Civilian Complaint Review Board" led by Investigator Benjamin Wurtzel, has subpoenaed the tape which will clearly show me being attacked from behind 3 times. I did not object, nor provoke, or any manner do anything to illicit these attacks. The only ones in my mind that can try to explain the need to attack me from behind would be Detectives Clarke and Evelyn.

As a result of these attacks I am in severe back pain, which necessitates me to visit the Brooklyn Spine Center under the leadership of Dr. Melinda Keller. Upon receiving X-rays of the entire spine, she recommended upon consultation a program of 2 visits per week for approximately 3 months to alleviate the intense pain I am in. As of this date I have incurred \$420 in non-refundable therapy expenses,

As I mentioned earlier the offices changed their mind about letting me have my say regarding what happened. Well lightning struck twice and they changed their mind again. It was determined that I can not enter the hospital again on 7/16/15 but I can come to the hospital on 7/17/15 to give consent for my mother to be discharged. After being escorted approximately 2 blocks from the hospital (and constantly reminded not to reenter the hospital on 7/16/15) I was told that I can not come to the hospital on 7/17/15 to give consent for my mother's discharge. When I said that I was told I could come the answer "I changed my mind" reared its head.

The result of this incident are the following:

1. I go to the Brooklyn Spine Center approximately twice a week for spine therapy (at an out of pocket cost of \$130/wk).
2. I have to most mornings stretch, exercise, walk anywhere from 40-60 minutes to get the extreme tightness and pain that has arisen since the attack ^{out of my lower back.}
3. My family doctor Dr. Robert Gouldman (over 20 years) and friends will tell you I never have needed any walking aid (cane, walker etc) but yet on a majority of days I need a cane to get around.

CLIENT'S VERIFICATION

STATE OF NEW YORK

ss:

COUNTY OF KINGS

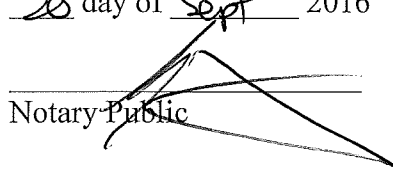
Leonard H. Green, being duly sworn, says:

I am a Plaintiff in the action herein: I have read the annexed **COMPLAINT** and/or know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my personal files.

DATED: BROOKLYN, NEW YORK
20 day of Sept 2016


LEONARD H. GREEN

Sworn to before me this:
20 day of Sept 2016


Notary Public

EUGENE BURKO
Commissioner of Deeds
City of New York 212594
Certificate Filed in Kings County
Commission Expires March 1, 2018

INDEX NO.:
SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

LEONARD GREEN,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE
OFFICER RONALD CLARKE, POLICE OFFICER CAMERON EVELYN,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

BARON ASSOCIATES P.C.
Attorneys for Plaintiff
Office and Post Office Address, Telephone
2509 AVENUE U
BROOKLYN, NEW YORK 11229
TELEPHONE (718) 934-6501
Email: Baronassociates@aol.com

CERTIFICATION PURSUANT TO 22 N. Y. C. R. R. 130-1.1(a):

I certify that to the best of my knowledge, information and belief, formed after an inquiry reasonable under the circumstances, that the presentation of the paper or the contentions therein are not frivolous, as that term is defined in 22 N. Y. C. R. R. 130-1.1(a).

Dated: 9/20/16

By: 
ALEXANDR GRISS

Please take notice that this office does not accept service via FAX and/or EMAIL.